

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PANAMA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Panama, grounded in the environmental impact study categories, the public forum, the citizen participation plan, prior consultation of Indigenous peoples, and the constitutional challenge

This guide uses the Panamanian legal terms you will actually encounter (the estudio de impacto ambiental and its category, the foro público, the Plan de Participación Ciudadana, the Resolución Ambiental, the comarca and its congreso general, the consulta previa, the acción de inconstitucionalidad, and so on), each explained in plain language where it first comes up. Panama's environmental evaluation rules were substantially reformed by executive decree in mid-2026; the core mechanics below apply, but you must check the current regulation before relying on any procedural detail.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Spanish legal terms are given with a short English gloss.

A note on money. Budgets in this guide are in balboas and US dollars, which circulate together in Panama. Every figure is indicative — Panamanian community campaigns are often run at low cost, since the public forum is free to attend and the decisive routes are administrative and constitutional. Treat the ranges as a menu, not a bill.

A note on currency. A new executive decree developing the environmental evaluation chapter of the General Environment Law took effect in mid-2026, and MiAmbiente has been training consultants, auditors, promoters and municipal environmental units in how it applies. Check which decree governs your project before counting days or categories.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action changes project outcomes in Panama — and this country has furnished the clearest recent proof anywhere that it can. In late 2023, after Panama's National Assembly approved a law containing a forty-year contract for the largest open-pit copper mine in Central America, the country saw **the largest peaceful protests in decades**, led by young people and joined by unions and Indigenous groups whose road blockades brought the country to a standstill. Within weeks the **full Supreme Court, unanimously, declared the entire law unconstitutional**, and the government announced it would comply and order operations to cease — and it was not the first time, the Court having already struck

down the mine's original agreement years earlier. The Panamanian record establishes that a mining law approved by parliament can be undone by citizens using a constitutional action.

The ordinary machinery matters too. Under the **General Environment Law**, projects on the regulatory list must submit an **estudio de impacto ambiental (EsiA)** to the **Ministry of Environment (MiAmbiente)**, which reviews it and approves or rejects it by **Resolución Ambiental**, then supervises the **environmental management plan** afterwards. The law requires the process to include **citizen participation mechanisms**. Studies are classified into **three categories**, and for the most serious — **Category III** — a **foro público** is **obligatory**, held during evaluation and **before the decision**, open to anyone wishing to learn about or comment on the study, and required to take place **principally in the community or district where the project is located**. Crucially, the forum can also be convened for a **Category II** study **at the request of the community or organised civil society** — a right most communities never exercise. Every study must include a **Plan de Participación Ciudadana** identifying the key actors in the project's area of influence and recording the community's contributions.

For Indigenous peoples there is a further layer. Panama's **comarcas** are territorial units with their own recognised authorities and congresses, and a 2016 law establishes the right of Indigenous peoples of the **comarcas, adjacent areas and collective lands** to **prior, free and informed consultation and consent** whenever legislative or administrative measures affecting their lands, territories, resources, ways of life and culture are contemplated — binding on **all organs and dependencies of the State**, conducted through **intercultural dialogue in the mother tongue and Spanish**, and aimed expressly at reaching **agreements of consent**.

The honest counterweight is real. Panama depends heavily on large investment, and the mine at the centre of the 2023 crisis accounted for a very large share of national exports. Forums can be held as formalities, and the categorisation deciding whether one is compulsory is an administrative act. The 2023 victory cost four deaths, more than a thousand detentions and a police response the Ombudsman called excessive, and it triggered international arbitration claims. The evaluation rules were rewritten again in 2026, so procedural detail must be checked.

What "winning" realistically means. Sometimes, as 2023 showed, an entire law annulled. More often: a **Category III classification** secured so a forum becomes obligatory, or a forum convened on a Category II study at the community's request; observations recorded in the participation plan and answered; an **environmental resolution** refused, conditioned, or annulled in the administrative courts; a **consultation** held that the State tried to skip; or a project delayed until its economics or politics change. The realistic goal is to make the category and the forum work for you, build a clean administrative record, and keep the constitutional route in reserve.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — establish the category, whether a forum is obligatory, and whether Indigenous consultation is engaged.
2. **Documentation** — build a record strong enough for the forum, the resolution, and a court.
3. **Local opposition** — organise so the forum is well attended and the participation plan reflects real community input.
4. **Legal challenges** — use the forum, the resolution, the consultation right, and the administrative and constitutional courts.
5. **Media strategy** — generate coverage, which in Panama has repeatedly proved decisive.

No single step wins alone. In Panama the combination that works is **a properly categorised study, a forum the community fills, and a legal route held ready**.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Panama's system leans toward investment, decides categories administratively, and can run forums as formalities. Assessing that honestly helps you choose the right tools: the strongest routes are **contesting the category, demanding a forum where the law allows the community to request one**, insisting the **participation plan** record real contributions, challenging the **Resolución Ambiental** before the administrative courts, invoking **prior consultation** where Indigenous territories are affected, and — where a law or contract is at stake — the **acción de inconstitucionalidad**. Section 13 deals honestly with tilted situations, including the costs of confrontation.

How to use this guide

Read Sections 1–3 once, and Section 4 immediately if a study has been submitted — the category and the forum date are

time-sensitive. Sections 5–8 run in parallel. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 helps you judge how far to take it.

HOW THE SYSTEM WORKS

Before you can fight a project you have to know who decides it, how, and the words the system uses. Panama is a unitary republic with **provinces, districts** (municipios) headed by an **alcalde**, and **corregimientos** with elected **representantes** — and, alongside them, **comarcas indígenas**, territorial units with their own recognised authorities and **congresos generales**. Environmental assessment rests on the **General Environment Law of 1998**, as amended and consolidated in a **Texto Único**, together with the executive decree regulating environmental impact evaluation — a decree substantially replaced in 2026.

The bodies that decide — and what each one controls

MiAmbiente (Ministerio de Ambiente). The environmental authority. It receives the **estudio de impacto ambiental**, verifies it against the minimum contents for its category, evaluates it together with the sectoral and municipal environmental units, holds or convenes the **foro público**, and issues the **Resolución Ambiental** approving or rejecting the study. After approval it is responsible for **seguimiento, control, fiscalización y evaluación** — follow-up, control, inspection and evaluation — of the **Plan de Manejo Ambiental** and of the terms of the approval resolution.

The sectoral and municipal environmental units. Environmental units inside government entities and municipalities help evaluate the study and supervise compliance afterwards — so the **municipio** is a participant, not a bystander.

The sector regulators. Mining, energy, water, maritime and tourism authorities grant the underlying concessions, which the environmental resolution conditions.

The comarca authorities. In a **comarca**, the **congreso general** and its authorities are the recognised institutions through which consultation must run, and their formal position carries substantial weight.

The courts. The **Sala Tercera** of the Supreme Court hears **contencioso-administrativo** actions to annul administrative acts — including environmental resolutions — and the **Pleno** of the Supreme Court hears the **acción de inconstitucionalidad**, the action that annulled the mining law in 2023. **Amparo de garantías constitucionales** protects fundamental rights against acts of authority.

Which one is "yours"? Ask: what **category** has the study been given — I, II or III? Is a **foro público** obligatory, or can the community request one? Which **municipio and corregimiento** host the project? Does it affect a **comarca, an adjacent area, or collective lands**, engaging **prior consultation**? Which sector authority grants the underlying concession? Pinning this down is Step 1.

How a decision is actually made — the journey of a project

Under the General Environment Law and its regulation the path is roughly:

1. **Is a study required, and in what category?** Projects on the regulation's list must submit an **EsIA**, whose requirements, **category** and contents are set by the regulation. **Category I** covers projects whose impacts are not significant; **Category II**, projects with significant impacts that can be mitigated by known measures; **Category III**, projects with significant qualitative and quantitative impacts requiring the fullest analysis. **The category determines how much public process you get**, which makes contesting it the most consequential early move available.
2. **Admission.** The study is submitted to MiAmbiente electronically and formally, and checked against the minimum contents required for its category.
3. **Evaluation and analysis.** MiAmbiente, with the sectoral and municipal environmental units, examines the technical content.
4. **The foro público.** For **Category III** a public forum is **obligatory**, held during the evaluation phase and **before the decision phase**. Anyone may attend, whether to learn about the study or to give observations on it, and it must be held **principally in the community or district where the project is located**, unless the promoter justifies another location and MiAmbiente accepts. **The forum may also be held for a Category II study at the request of the community or organised civil society** — a right worth exercising, because it converts a paper process into a public one.
5. **The Plan de Participación Ciudadana.** Every study must contain a citizen participation plan identifying the **key actors within the project's area of influence**, the participation techniques used, **the community's contributions**,

and how possible conflicts are to be resolved. A plan that names no real actors, or records no contributions, is a defect you can point to.

6. **Decision.** MiAmbiente formalises approval or rejection by **Resolución Ambiental**. Approval carries conditions and an environmental management plan.
7. **Follow-up.** MiAmbiente and the competent environmental units supervise implementation of the management plan and the resolution's terms — so breach after approval remains actionable.

Where **Indigenous peoples** are affected, a parallel obligation applies: **prior, free and informed consultation and consent**, carried out before the legislative or administrative measure, through intercultural dialogue, with the purpose of reaching **agreements of consent**.

The rulebook — the policies that decide the outcome

- **The General Environment Law and the evaluation decree.** Was a study required and submitted? Was the **category** correct? Was a **foro público** held where obligatory — or requested where the community was entitled to ask? Does the **participation plan** reflect real consultation? Was the resolution properly reasoned, and are its conditions being met?
- **The 2016 consultation law.** Does the project involve a legislative or administrative measure affecting the **lands, territories, resources, ways of life or culture** of Indigenous peoples of a **comarca, adjacent area or collective land**? If so, consultation is described as an **indispensable and obligatory right**, exercised **prior** to the measure, binding on all State organs, and aimed at agreements of consent.
- **The Constitution.** The framework for the **acción de inconstitucionalidad**, available against laws and contracts approved by law, and for **amparo** against acts of authority infringing fundamental rights.
- **Sector law.** Mining, water, energy and coastal regimes carry their own concessions and their own vulnerabilities.

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Panama's economy rests on the canal, logistics, finance and large-scale investment, and a single mining operation came to account for a very large share of national exports; concessions and contracts are approved at the highest political level, sometimes by law; studies are commissioned and paid for by promoters; and categorisation, which decides how much public scrutiny follows, is an administrative act. None of this is unlawful, but it explains the default lean toward approval — and why the category, the forum and the courts are where communities find leverage.

The overseers — who watches the decision-makers

- **The Pleno of the Supreme Court** — which unanimously annulled the 2023 mining law, and which had already struck down the earlier agreement.
- **The Sala Tercera (contencioso-administrativo)** — where environmental resolutions are challenged, and which has ruled on citizen participation in impact studies.
- **The Defensoría del Pueblo** — the Ombudsman, which criticised the policing of the 2023 protests and receives complaints on rights and administration.
- **The Contraloría General** — public funds.
- **The comarca congresses** — whose formal positions carry real weight in Indigenous territories.
- **Environmental organisations, professional bodies and student movements** — an unusually mobilised civil society, as 2023 demonstrated.

Naming and using the right body matters: in Panama the most consequential early judgment is usually **what category the study carries, and therefore whether the public gets a forum at all**.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Panamanian and comparable campaigns, not a controlled study. Use them to prioritise effort. The most important lesson for Panama sits inside the table: the **category** decides whether the public gets a forum, and the **constitutional action** is a live, proven route — this is a country where citizens have twice had a mining agreement annulled by the Supreme Court.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (USD/B)	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Local opposition only	20-35%	6-24 months	low	Local and political pressure
Challenge to the category	25-45%	1-6 months	low	Category III; forum becomes obligatory
Requesting a forum on a Category II study	25-40%	1-3 months	low	Public forum convened
Turnout and observations at the foro público	20-35%	1-2 months	low	On record; conditions or rejection
Prior consultation claim (Indigenous)	35-55%	6-36 months	low-moderate	Consultation ordered; measure suspended
Annulment of the Resolución Ambiental	25-45%	12-36 months	moderate	Approval annulled
Acción de inconstitucionalidad	25-45%	6-24 months	moderate	Law or contract-law annulled
Media and mass mobilisation	30-50%	1-12 months	low	Political reversal; legislative repeal
Docs + local opposition + media	35-50%	6-18 months	low-moderate	Pressure plus a stronger case
All steps combined	50-70%	9-36 months	moderate	Approval refused or annulled, consultation ordered, project suspended or abandoned

Key insight: all steps together are far more effective than any single one — and Panama has two multipliers that most countries lack. The first is the **category and forum structure**, which gives communities a public hearing in their own district and, unusually, a right to **request** one even when it is not automatic. The second is **mass mobilisation feeding a constitutional action**: the 2023 sequence — nationwide protest, two constitutional challenges, a unanimous Supreme Court, and an order to cease operations — is the single most consequential environmental outcome in the region in recent years. The distinctive disadvantages are that categorisation is administrative, forums can be run as formalities, the economic stakes are enormous, and confrontation has proved costly in lives, arrests and arbitration exposure.

A note on cost: attending and speaking at a forum, submitting observations, and requesting a forum cost nothing. Administrative annulment and constitutional actions cost more but are within reach with counsel, and Panamanian environmental organisations and university law faculties have supported such cases. The expenditure that most changes outcomes is independent technical review — hydrology, water quality, forest cover — and early legal advice.

Effectiveness Visualization

SUCCESS PROBABILITY (approval refused or annulled, consultation ordered, project suspended or abandoned)

FAVOURABLE SCENARIO (Category III or forum obtained, Indigenous territory or water at stake, strong public attention):

All steps combined:	50-70%
Prior consultation claim:	35-55%
Mobilisation + courts:	30-50%
Single step:	5-45%

TILTED SCENARIO (Category I/II with no forum, project of national economic weight, late discovery):

All steps combined:	30-45%
Category challenge:	25-40%
Local + media:	20-35%
Single step:	3-15%

How to read this honestly. In Panama the strongest early move is almost always **about the category**: a project classified so as to avoid an obligatory forum has escaped the only stage at which the public is guaranteed a hearing, and contesting that — or exercising the community's right to **request a forum on a Category II study** — reopens the process. After that, the strongest legal facts are a **forum that was not held where it should have been**, a **participation plan that records no genuine community contribution**, an **environmental resolution that fails to answer substantiated observations**, and — where Indigenous territories are affected — the **absence of prior consultation**, which the law describes as an indispensable and obligatory right exercised before the measure. And

Panama offers something rare: where the instrument is a **law or a contract approved by law**, any citizen may bring an **acción de inconstitucionalidad**, the route that in 2023 annulled an entire mining law. Judge success accordingly, and note the honest costs: that outcome followed protests in which four people died and more than a thousand were detained, and it was followed by international arbitration claims against the State.

Step Importance Ranking (When All Combined)

1. **Legal challenges** — the category, the resolution, consultation, and the constitutional action.
2. **Local opposition and mobilisation** — which in Panama has demonstrably moved the courts and the legislature.
3. **Documentation** — the evidence for the forum, the resolution and the courts.
4. **The foro público** — the guaranteed public stage, and the source of procedural grounds.
5. **Media** — unusually powerful here, and the mechanism by which local disputes became a national crisis.

Winning Panamanian campaigns combined a contested category, a well-filled forum, documented technical objections, Indigenous authorities where relevant, sustained national attention, and counsel ready to file.

What Panamanian Campaigns Actually Show

A few patterns recur. **Constitutional actions work here** — in **2023** the National Assembly approved a law containing a forty-year contract for the largest open-pit copper mine in Central America; the country saw **the largest peaceful protests in decades**, led by young people with road blockades by **Indigenous groups and unions**; and on **28 November 2023 the full Supreme Court, by unanimity of its nine magistrates, declared the whole law unconstitutional** in response to two challenges, with the President stating he would comply and operations ordered to cease. It was not unprecedented: the Court had **already declared the original 1997 agreement unconstitutional in 2017**. **Mobilisation and litigation reinforce each other** — the protests did not themselves annul the law, nor the challenges alone stop the mine; the combination did. **The costs were real** — four deaths, more than 1,300 detentions, a teachers' strike affecting some 800,000 students, an Ombudsman finding of excessive force, and subsequent **international arbitration claims** against Panama. **Participation has been litigated** — the administrative jurisdiction has ruled on citizen participation in impact studies. **Indigenous law is distinctive** — prior consultation rests not on the ILO convention but on a **2016 statute** built on the UN Declaration and Inter-American jurisprudence, binding on all State organs. The through-line: **contest the category, fill the forum, invoke consultation, and remember that in Panama the Constitution has twice been the decisive instrument**.

STEP 1: TARGET IDENTIFICATION

You cannot fight what you have not precisely identified. Answer five questions, and write the answers in a shared document — this becomes the campaign's factual spine.

Core Questions You Must Answer

Question 1: What Exactly Will Be Destroyed?

Get the specifics: exact location and extent, project type and stage, and what is there now — **rivers and quebradas used for drinking and washing, forest and the biological corridor, mangrove and coastline, farmland and fincas, and homes facing displacement**. Obtain the **EsIA** and list every admitted impact with its page reference. Pay particular attention to **water** — catchments, quebradas and downstream users — and, for mining and coastal projects, to **tailings, discharges and reef or mangrove loss**, which have driven Panama's largest conflicts.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) the study's **category — I, II or III** — and therefore whether a **foro público** is obligatory; (b) the **MiAmbiente** office handling it; (c) the **municipio and corregimiento**, whose environmental units participate in evaluation and supervision; (d) which **sector authority** grants the underlying concession; and (e) whether the project affects a **comarca, an adjacent area, or collective lands**, engaging **prior consultation** through the **congreso general**.

Question 3: What Specific Action Stops It?

A project can be stopped or reshaped at several points: a **category raised to III**, making a forum obligatory; a **forum**

requested and held on a Category II study; observations that force conditions; a **Resolución Ambiental refused**; that resolution **annulled** in the administrative jurisdiction; **consultation ordered** where Indigenous rights were bypassed; or — where the instrument is a law or a contract approved by law — an **acción de inconstitucionalidad**. Map them and pursue at least two.

Question 4: When Is the Decision Final?

Diarrise the deadlines. The **foro público** must occur during evaluation and **before** the decision — so once you know a study has been admitted, the window to demand or prepare for a forum is open now. Requests for a forum on a **Category II** study must be made while the study is under evaluation. Once the **Resolución Ambiental** issues, the period for an administrative annulment action is limited, so consult counsel immediately. An **acción de inconstitucionalidad** against a law has its own procedure and no equivalent short window, which is why it remained available in 2023 after the law was passed. And note that the **2026 decree** changed procedural detail — verify the timetable rather than assuming it.

Question 5: Are There Documented Financial Interests or Systemic Pressures?

Map, factually and carefully: the promoter and any foreign parent; whether the project rests on a **concession or a contract approved by law**, which determines whether the constitutional route is available; what share of exports or public revenue it represents; and which authorisations already exist. Use public sources — the **Gaceta Oficial**, the public registry, MiAmbiente's published resolutions, and municipal records. Build a dated, sourced timeline and keep to documented facts.

Output of Step 1: a one-page fact sheet with the project's exact description, its category and whether a forum is obligatory, the MiAmbiente office and municipio, whether a comarca or collective land is affected, the instrument on which the project rests, every deadline, and the money map.

Worked example: which lever is actually open

Suppose a hydroelectric or mining project is proposed on a river that runs out of a **comarca** and past several downstream communities, and word arrives that a study has been submitted as **Category II**. Working the questions: **Q1** — the river, the fisheries, the forest and the downstream water users are affected; you record them. **Q2** — the decisive fact is the **category**: as Category II, **no public forum is automatic** — but the community and organised civil society may **request one**, and that request is the single highest-value action available. In parallel, because the project affects a **comarca and its adjacent areas**, **prior consultation** is engaged, and the **congreso general** is the institution through which it must run. **Q3** — the live levers are: the **forum request**; a challenge to the **category** itself; observations forcing content into the **participation plan**; **consultation** through the comarca authorities; and, if the resolution issues regardless, **annulment**. **Q4** — you act while the study is under evaluation, before the decision phase closes. **Q5** — the Gaceta and the registry show the promoter and the instrument. In an afternoon you know that **the forum request and the consultation are the campaign**, and that if the project rests on a law rather than a concession, the constitutional route sits behind them.

STEP 2: DOCUMENTATION

Documentation in Panama has three destinations: the **foro público**, where the community speaks on the record in its own district; the **Plan de Participación Ciudadana**, which is supposed to record what the community actually contributed; and the courts, whether the administrative jurisdiction reviewing a resolution or the Supreme Court hearing a constitutional action. Build every layer with those in mind — and, because the public forum is a spoken proceeding, build material that can be **said in five minutes as well as filed in writing**.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project.

Water first. Document the river, quebradas, springs and wells: course, condition, and the households, farms and fisheries depending on them, upstream and downstream, photographed and dated. Water is the organising issue in Panama's largest conflicts, and downstream users are frequently left out of the promoter's "area of influence".

Forest, mangrove and coast. Document forest cover and its place in the biological corridor, mangroves, reef and beach,

dated. Where a project sits inside a corridor or protected area, establish that clearly — it changes both the legal and public argument.

Land, farms and livelihoods. Document fincas, subsistence plots, fishing grounds and the households working them, with any displacement proposed.

Comarca, adjacent areas and collective lands. Where Indigenous peoples are affected, document the territorial status precisely — comarca, adjacent area or collective land — with the community's use, occupation and authorities, since the consultation right attaches to these categories.

How to hold it. Keep everything dated, located and backed up, held collectively rather than by one person.

LAYER 2: STUDY AND PROCESS ANALYSIS

Show what the project would do and whether the process is sound. Catalogue four things:

1. **The category.** Is the classification right for the project's real scale and impacts? A project with significant qualitative and quantitative impacts belongs in **Category III**, where a **foro público is obligatory**. If it has been placed lower, that is the first and most consequential thing to contest — and, for Category II, remember the community may **request** a forum regardless.
2. **The area of influence and the participation plan.** Does the **Plan de Participación Ciudadana** identify the **key actors in the area of influence** — including downstream communities, fishers, and Indigenous authorities — and does it record **the community's contributions**? A plan naming nobody you recognise, or recording contributions nobody made, is a documentable defect.
3. **The study's substance and gaps.** Mine the EsIA for admitted impacts with page references, and identify omissions: water balance and downstream users, cumulative effects with other concessions in the same basin, alternatives not seriously assessed, and vague monitoring commitments.
4. **Consultation.** Where a comarca, adjacent area or collective land is affected, establish whether **prior, free and informed consultation** was carried out **before** the measure, through the recognised authorities, in the mother tongue as well as Spanish, and aimed at agreements of consent — or whether it was replaced by an information meeting after the fact.

Get expert eyes on it. A technical critique carries far more weight at a forum and before a court when a qualified professional has signed it. Panamanian universities, professional associations of engineers and biologists, and environmental organisations are realistic sources; for water and for forest-corridor questions an independent assessment is often decisive.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human terms, because a forum is a public hearing and courts respond to concrete harm:

- **Health and water access** — households whose drinking water is affected, distances to alternatives, contamination risk, dust and noise.
- **Livelihoods** — farming, fishing and small tourism enterprises at risk, quantified per household where possible, set against the project's claimed employment.
- **Community, culture and territory** — displacement, loss of access to river or forest, and, in Indigenous territories, the effect on ways of life and culture, which is the language the consultation law itself uses.

Package this layer twice: a rigorous version in **Spanish** for MiAmbiente, the forum record and any court, and a short spoken version — five minutes, three facts, one image — for the forum itself and for the press.

How to Structure Your Documentation

- **Phase 1: Baseline (Weeks 1-4)** — water, forest, land and territory, before works begin.
- **Phase 2: Category and process (Weeks 2-8)** — the classification, the participation plan, the forum position, and the consultation question.
- **Phase 3: Substance (Months 2-3)** — the technical critique with professional sign-off, ready for the forum.
- **Phase 4: Follow-up (ongoing)** — conditions monitoring after any approval, since MiAmbiente supervises the management plan and the resolution's terms.

Common Documentation Pitfalls (What Fails)

- **Accepting the category** — it decides whether you get a hearing at all.
- **Not requesting a forum on a Category II study** — the right exists and is rarely used.
- **Ignoring the participation plan** — it is where your contributions are supposed to appear, and its emptiness is evidence.
- **Leaving downstream communities out** — promoters often define the area of influence narrowly; your evidence should widen it.
- **Treating consultation as a meeting** — the law requires a prior process aimed at consent, through recognised authorities.
- **Preparing only written material** — the forum is spoken, and a clear five-minute intervention with an image carries further than a long document.

Documentation Budget Breakdown (USD/B)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Photography, GPS, mapping	minimal	modest
Copies of the study and resolutions	modest	modest
Water sampling and analysis	modest	moderate
Technical/academic review	often free	moderate
Legal advice and filings	modest	moderate
Transport to the forum and printing	modest	modest

Most of this is inexpensive. Spend where it counts: an **independent water assessment** and **counsel engaged before the resolution issues**.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what decides a Panamanian case is documentary and much of it is published. The job is knowing where to look, and asking in writing for the rest.

MiAmbiente. The **EsIA** and its **category**, the **Plan de Participación Ciudadana**, the record of the **foro público**, the **Resolución Ambiental** and its conditions, the **Plan de Manejo Ambiental**, and inspection records. Ask in writing for anything not published.

The Gaceta Oficial. Where laws, contracts approved by law, and many resolutions are published — including the instrument on which the project rests, which determines whether the constitutional route is available.

The municipio. Municipal permits, the environmental unit's role in evaluation, and council resolutions. A council that takes a formal position is both a political fact and a useful document.

The sector authority. The mining, water, energy or maritime concession, its terms and dates.

Comarca and collective land records. The comarca's boundaries and authorities, resolutions of the **congreso general**, and any record of consultation or its absence.

Company and registry records. The public registry for the promoter and its parent, and financial disclosure where a foreign-listed company is involved.

How to force a document open. Panama has a **transparency and access to public information law** with designated officers and statutory response periods, and MiAmbiente publishes resolutions. Make requests in writing, cite the law, keep proof of filing, and treat refusal or silence as part of the record — particularly where the missing document is the study the public was meant to comment on.

Free and low-cost help. Panama has active environmental organisations, professional associations, university faculties, and — in Indigenous territories — comarca structures with their own legal advisers. **Approaching them early is the highest-value single step:** they know how forums are run, how categories are contested, and how the constitutional action is framed.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to MiAmbiente and the sector authority, and the local-ally entries point you to the organisations, comarca authorities and lawyers already

working nearby.

STEP 3: BUILDING LOCAL OPPOSITION

Critical Insight About Organizing

Panama is the country in this series where **organising has most visibly changed a national outcome**. In 2023 a local mining dispute became a nationwide movement that filled the streets for weeks, and the constitutional challenges that annulled the law arrived in a political atmosphere that movement had created. The lesson is not that protest alone decides things — it did not — but that in Panama **mobilisation and litigation compound each other**, and that the public forum, the media and the courts are connected stages of the same campaign.

Three principles carry special weight here: **fill the forum** (it is a public hearing in your own district, and both its content and its conduct become part of the record); **build beyond the affected community** (Panama's decisive movements have joined rural communities, Indigenous authorities, unions, students and urban professionals — a combination the State finds far harder to dismiss than a single village); and **keep it peaceful and keep it legal** (the 2023 protests were overwhelmingly peaceful and that mattered, but four people still died and more than a thousand were detained, so plan for safety and legal support deliberately).

PHASE 1: FOUNDATION (Weeks 1-4)

Step 1a: Start with the most affected — upstream and downstream. Reach the households whose water, land, fishing or homes are at stake, deliberately including **downstream communities**, whom the area of influence often omits. Begin a dated photographic record.

Step 1b: Affinity groups by concern. Let people join through water, farmland, fishing, forest, health or territory. Where a **comarca** is affected, engage its authorities through their own processes and pace — they are not a stakeholder group but a recognised institution.

Step 1c: Establish the category and get advice. Find out whether the study is **Category I, II or III**, since that determines whether a **foro público** is automatic. Contact an organisation or lawyer early: the category can be contested and, for Category II, a forum can be **requested**.

PHASE 2: PUBLIC LAUNCH (Weeks 4-10)

Step 2a: Request the forum, in writing. Where the study is **Category II**, submit a written request from the community and organised civil society for a **foro público** (Section 8B). Where it is Category III, confirm in writing the date and, crucially, that it will be held **in the affected community or district** rather than in the capital.

Step 2b: Prepare the community to speak. A forum is a spoken proceeding. Prepare a handful of clear five-minute interventions — water, land, health, territory — each with a name, a place and a number, and support anyone nervous about speaking. Prepare written observations too, and keep copies.

Step 2c: Document the forum itself. Record attendance, location, language, whether interpretation was provided, who was permitted to speak and for how long, and what was answered. If it was held far from the affected community, or people could not realistically attend, record that in writing the same week.

Step 2d: Media at launch. Time coverage to the forum; national attention has repeatedly turned a local dispute into a political question.

PHASE 3: COALITION EXPANSION (Months 2-6)

Step 3a: Broaden the alliance. Bring in neighbouring corregimientos and downstream communities, **comarca authorities and congresses** where relevant, fishers' and farmers' associations, the **municipio** and its council, professional associations, universities and students, unions, churches, and national environmental organisations.

Step 3b: Coalition agreements. Agree who speaks publicly, who instructs counsel, who holds documents, and how decisions are taken — and where a comarca is involved, respect that its congress decides for itself.

Step 3c: Prepare the legal file in parallel. Assemble what an annulment or constitutional action needs: the study, the category decision, the participation plan, the forum record, your observations, the technical review, and the instrument

the project rests on.

PHASE 4: SUSTAINED PRESSURE (Months 4-12)

Step 4a: Press the institutions. Submit observations and the technical review to MiAmbiente; ask the **municipio** for a formal position; petition the **Defensoría del Pueblo** where rights or policing are in issue; and where Indigenous territory is affected, insist through the **congreso general** on **prior consultation** before any measure.

Step 4b: Litigate when the moment comes. If the **Resolución Ambiental** issues despite a defective process, instruct counsel promptly for annulment; if the project rests on a **law or a contract approved by law**, the **acción de inconstitucionalidad** is available — the route that succeeded in 2023 and, before it, in 2017.

Step 4c: Public action and safety. Peaceful assembly is a constitutional right and has been decisive here. But plan it properly: agree stewarding, keep actions lawful, arrange legal support and a record of detentions in advance, avoid anything attributable to infiltrators, and note that road blockades in particular have led to deaths, mass detentions and an Ombudsman finding of excessive force.

Worked example: a coalition that unlocks the strong levers

A river that rises in a comarca and passes several farming and fishing communities is to be dammed or mined; word arrives that a study has been filed as **Category II**. Anger is immediate and a blockade is proposed — the course most likely to bring casualties. What converts the anger into force happens differently. First, the communities and organised civil society file a **written request for a foro público**, which the law allows for a Category II study, and simultaneously contest the **category** on the basis of the project's real scale. Second, they engage the **comarca's congreso general**, whose authorities raise the separate and stronger question of **prior, free and informed consultation**, which must occur **before** the measure and aims at agreements of consent. Third, they widen the circle deliberately — downstream fishers, the municipio, the university, professional associations, unions and students — because Panama's decisive movements have always been broader than the affected village. Fourth, they prepare **five-minute interventions** with named people, places and numbers, and a signed technical review of the water balance, and they **document the forum's conduct** — where it was held, who could speak, what was answered. Fifth, counsel assembles the file so that, if the **Resolución Ambiental** issues anyway, an annulment action follows immediately — and if the project rests on a **law**, the **acción de inconstitucionalidad** is ready. The lesson generalises: **in Panama, the forum you demand and the breadth you build in month one are what make the legal action credible in month twelve.**

Opposition Building Budget: Year-Long Campaign (USD/B)

Modest. The recurring costs are transport to the forum and the provincial centre, printing observations and materials, communications, meetings, and copying. Technical review is often provided by universities or organisations, and legal support by environmental organisations or counsel acting at reduced cost. Reserve what you can for an **independent water assessment** and **legal fees**, and — if public actions are planned — for **legal support and accompaniment**, which in Panama has proved a necessary line rather than a precaution.

STEP 4: LEGAL CHALLENGES

Panama offers communities an unusually complete ladder: an administrative process with a guaranteed public stage, a specialised administrative jurisdiction, a distinct Indigenous consultation right, and a constitutional action that has twice annulled a mining agreement. Three tracks — the administrative process, the consultation right, and the courts.

TRACK 1: THE ADMINISTRATIVE PROCESS (the front door)

- **Contest the category.** The classification into **Category I, II or III** determines whether a **foro público** is obligatory. Where a project with significant qualitative and quantitative impacts has been placed lower, say so in writing to MiAmbiente with reasons — this is the highest-value early intervention available, because it decides whether the public is heard at all.
- **Request a forum where the law allows it.** For a **Category II** study, a **foro público may be held at the request of the community or organised civil society**. Submit that request in writing, from as many organisations and residents as possible.
- **Insist the forum be held locally.** The forum must take place **principally in the community or district where the project is located**, unless the promoter justifies elsewhere and MiAmbiente accepts. A forum moved to a distant city,

without proper justification, is a defect worth recording.

- **Use the participation plan.** The **Plan de Participación Ciudadana** must identify the **key actors in the area of influence** and record **the community's contributions**. Demand that downstream communities and Indigenous authorities be included, and that what you actually said appears.
- **Observations and conditions.** Submit written observations during evaluation, and press for specific, verifiable conditions in any **Resolución Ambiental** — conditions matter because MiAmbiente supervises compliance with the resolution and the management plan afterwards.

TRACK 2: PRIOR CONSULTATION (where Indigenous peoples are affected)

- **The right.** Panama's 2016 statute establishes **consultation and prior, free and informed consent** for Indigenous peoples of the **comarcas, adjacent areas and collective lands**, whenever legislative or administrative measures affecting their **lands, territories, resources, ways of life and culture** are contemplated. It binds **all organs and dependencies of the State**, and is grounded in the UN Declaration and Inter-American human rights jurisprudence rather than the ILO convention.
- **What it requires.** Consultation must be **prior** to the measure — the law describes it as an **indispensable and obligatory right** exercised beforehand — conducted in **good faith** through **intercultural dialogue in the mother tongue and in Spanish**, guaranteeing inclusion in State decision-making, with the express purpose of **reaching agreements of consent**.
- **How to use it.** Where a measure has been taken without consultation, say so formally through the **congreso general** and the recognised authorities, demand that the process be carried out, and preserve the point for court. A consultation held after the decision, or as a single information meeting, does not meet the statutory description.

TRACK 3: THE COURTS

- **Annulment of the Resolución Ambiental.** A **contencioso-administrativo** action before the **Sala Tercera** of the Supreme Court to annul an environmental resolution, on grounds including wrong categorisation, a forum not held or improperly held, failure to consider observations, a participation plan that records no genuine participation, or a study inadequate on its face. Time limits are short once the resolution issues — instruct counsel immediately.
- **Acción de inconstitucionalidad.** Where the project rests on a **law or a contract approved by law**, any citizen may challenge it before the **Pleno** of the Supreme Court. This is the route that produced the **unanimous annulment of the mining law in 2023**, and the earlier annulment of the original agreement. It has no equivalent short deadline, which is why it remained available after the law was passed.
- **Amparo de garantías constitucionales.** Against acts of authority infringing fundamental rights, and a route to urgent protection.
- **Interim protection.** Ask counsel about suspension of the challenged act where irreversible works — clearing, damming, excavation — are imminent.

The three legal challenge types

TYPE 1: THE ADMINISTRATIVE PROCESS (the front door)

Category challenge, forum request, insistence on a local forum, the participation plan, observations and conditions.

TYPE 2: PRIOR CONSULTATION (Indigenous territories)

The 2016 statute's right to prior, free and informed consultation and consent, exercised through the comarca's own authorities.

TYPE 3: THE COURTS

Annulment before the Sala Tercera; the **acción de inconstitucionalidad** before the Pleno where the instrument is a law; amparo; and interim protection.

Legal Strategy Decision Tree

1. **What category is the study?** → If below III, contest it and, for Category II, **request a forum** in writing.
2. **Is a comarca, adjacent area or collective land affected?** → Raise **prior consultation** through the congreso general at once; it is a separate and stronger obligation.
3. **Is a forum scheduled?** → Confirm it will be held **in the affected district**, prepare spoken interventions, and document its conduct.

4. **Has the Resolución Ambiental issued?** → Instruct counsel promptly for **annulment**; the window is short.
5. **Does the project rest on a law or contract-law?** → The **acción de inconstitucionalidad** is available to any citizen, and it has succeeded here twice.

Litigation Success Factors

A documented category error; proof that the forum was not held, or not held locally, or not genuinely open; a participation plan that omits real actors or invents contributions; observations submitted and unanswered; the absence of prior consultation where Indigenous territory is affected; independent technical evidence, especially on water; and — for the constitutional route — clarity about the instrument, since that determines which court hears you.

What to Avoid: Legal Failures

Accepting the category without challenge; failing to request a forum when entitled to; treating an information meeting as consultation; missing the short deadline for annulment once the resolution issues; and escalating to blockades without legal support in place, which in Panama has carried severe human costs.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when aimed at a specific ground. Here is how the records you gathered map onto the arguments that most often work in Panama.

A project with significant impacts classified below Category III → wrong categorisation; forum obligatory. Feed it with: the project's scale, its admitted impacts, and the criteria for the categories.

No forum where one was obligatory, or a forum held far from the community → procedural defect. Feed it with: the notice, the location, attendance, and the absence of justification for moving it.

A participation plan that names no real actors or records no contributions → defective participation. Feed it with: the plan itself, the list of communities actually affected including downstream users, and your own record of what was said.

Observations submitted and never answered → failure to consider. Feed it with: your filed observations and the resolution's silence.

Indigenous territory affected without prior consultation → breach of the 2016 statute. Feed it with: the territorial status, the recognised authorities, the absence of a prior process in the mother tongue aimed at agreements of consent, and the timing of the measure.

Threat to a river, catchment or downstream users → the substantive case. Feed it with: the independent water assessment, the households and farms affected, and the study's own water balance.

A law or contract-law approved without regard to constitutional requirements → acción de inconstitucionalidad. Feed it with: the instrument, its passage, and the constitutional provisions engaged.

The pattern: **lead with the category and the forum**, add consultation where Indigenous territory is affected, prove harm with water evidence, and keep the constitutional route in reserve where the instrument permits it.

STEP 5: MEDIA STRATEGY

Media matters more in Panama than in most of this series, because the country has recently demonstrated that national attention can turn a local environmental dispute into a constitutional question — and because forums, resolutions and court filings all give journalists dated pegs.

How Journalists Actually Work

Reporters need a hook, a human face, a conflict, and a document. Hand them the study's own admission with a page reference, the category decision, the forum notice showing where it will be held, a named farmer whose water is at stake, and a strong image. Make it easy, and never give a fact you cannot stand behind.

The Newsworthiness Formula

Local stakes + a credible threat + a documented procedural failure + a David-and-Goliath frame + a strong image = coverage. Three angles reliably travel in Panama: **water and rivers**, **forest and the biological corridor**, and **Indigenous territory and consultation** — with a fourth, **a public excluded from a hearing it was entitled to**, which is both newsworthy and directly useful in court.

Know the Outlets That Cover This Beat

Map the national dailies and television and their environment correspondents, the digital outlets that covered the 2023 crisis, provincial and community radio, and — where a foreign-listed company is involved — international and financial press, which follows arbitration and licence risk.

Building Reporter Relationships (The Key)

Give reporters accurate, sourced material and become their reliable contact. One trusted relationship beats a dozen releases. Offer a site visit and access to residents and, where appropriate, comarca authorities. Be scrupulously accurate: with national economic stakes, one unsupported claim discredits everything else.

Why media matters even when it doesn't make the front page

Coverage reaches the university that will review your water evidence, the organisation that will litigate, the deputy who will ask questions, and the wider public whose engagement here has twice proved decisive. It also creates a dated record of what the community said and when — useful when a participation plan claims otherwise.

Sample Media Timeline

Launch with the category decision or the forum request; refresh at each milestone — the forum itself and how it was run, the observations filed, the resolution, the annulment or constitutional filing, and any consultation ordered.

Media Measurement

Track coverage, but measure what matters: whether a forum is convened and held locally, whether the category is revisited, whether consultation begins, whether counsel and organisations engage, and whether works have started.

EMAILS & LETTERS

Ready-to-adapt templates. Keep them factual, dated, and sourced. File important ones through the entity's registry (**recepción**) against a stamped copy, or by certified means, and keep proof — in Panama the dated request and the dated observation are what make the later court case possible. Have counsel review anything heading to court.

8A. Email to a reporter (story pitch)

Subject: [Corregimiento, Provincia]: [project] classified Category II — communities ask for a public forum
Estimada/o [name],

[Promoter] has submitted an environmental impact study for [project] at [location]. It has been classified **Category I/II**, which means **no public forum is automatic** — although the law allows one to be held at the request of the community and organised civil society. We filed that request on [date]; copy attached.

The study itself admits [specific impact, quoted, with page reference]. The [river/quebrada] affected supplies [number] households and [number] hectares downstream — communities that do not appear in the project's area of influence. [Where relevant: the project affects the comarca of [name] / adjacent areas, engaging prior consultation under Law 37 of 2016.]

I can arrange a site visit and interviews. Could we speak this week?

[Name] · [Organisation/community] · [phone] · [email]

8B. Request for a public forum on a Category II study

Asunto: Solicitud de foro público — Estudio de Impacto Ambiental del proyecto [nombre]

Señor Ministro de Ambiente / Director Regional de MiAmbiente en [provincia]:

Los abajo firmantes, residentes de [comunidades] y organizaciones de la sociedad civil organizada, solicitamos la realización de un **foro público** respecto del Estudio de Impacto Ambiental del proyecto [nombre], actualmente en fase de evaluación.

Fundamos la solicitud en que la reglamentación permite la celebración del foro público para los EsIA de Categoría II a solicitud de la comunidad y de la sociedad civil organizada, y en que: 1. el proyecto afecta [el río / la quebrada], **del cual dependen [número] familias y [número] hectáreas**; 2. **existen comunidades aguas abajo que no figuran en el área de influencia definida**; 3. **[el proyecto afecta territorio de la comarca / áreas anexas / tierras colectivas de]**.

Solicitamos igualmente que el foro se realice **en la comunidad o distrito donde se ubica el proyecto**, y que se nos informe de la fecha con antelación suficiente.

[Firmas, cédulas, comunidad, fecha — conservar copia sellada]

8C. Written observations submitted at or before the forum

Asunto: Observaciones al Estudio de Impacto Ambiental del proyecto [nombre]

Señor Ministro de Ambiente:

Los residentes de [comunidad] presentamos las siguientes observaciones: 1. **Agua.** [El proyecto afecta [río/quebrada], fuente de agua de [número] hogares; el EsIA no evalúa adecuadamente los usuarios aguas abajo — véase pág. ____.] 2. **Bosque y corredor.** [Superficie a intervenir, ubicación respecto del corredor biológico / área protegida.] 3. **Categoría.** [Por la magnitud y los impactos cualitativos y cuantitativos descritos, el estudio corresponde a **Categoría III**, con foro público obligatorio.] 4. **Plan de Participación Ciudadana.** [No identifica como actores clave a [comunidades aguas abajo / autoridades tradicionales]; no recoge aportes de la comunidad.] 5. **Efectos acumulativos.** [Otras concesiones en la misma cuenca no son evaluadas conjuntamente.]

Solicitamos que el EsIA sea **rechazado** o, en su defecto, que se exijan condiciones verificables, y que se dé respuesta expresa a estas observaciones en la Resolución Ambiental.

[Nombres, cédulas, comunidad, fecha; conservar copia sellada]

8D. Record of how the forum was conducted

Asunto: Constancia sobre el desarrollo del foro público del proyecto [nombre], celebrado el [fecha]

Señor Ministro de Ambiente:

Dejamos constancia de lo siguiente respecto del foro público celebrado el [fecha] en [lugar]: 1. **Lugar.** [El foro se celebró en , a ____ km de la comunidad afectada, sin que se nos informara de justificación alguna para no celebrarlo en el distrito del proyecto.] 2. **Convocatoria.** [La convocatoria se publicó el , con ____ días de antelación, por ____.] 3. **Participación.** [Asistieron aproximadamente ____ personas; se concedió la palabra a ____; se limitó a ____ minutos; no hubo interpretación a ____.] 4. **Respuestas.** [Las preguntas sobre ____ no fueron respondidas.]

Solicitamos que esta constancia se incorpore al expediente y que se subsanen las deficiencias señaladas.

[Firmas, fecha]

8E. Access to information request

Asunto: Solicitud de información pública

Señor(a) Oficial de Información de [MiAmbiente / Municipio de ____ / autoridad sectorial]:

Con fundamento en la legislación de transparencia y acceso a la información pública, solicitamos copia de: 1. el **Estudio de Impacto Ambiental** del proyecto [nombre] y el acto que determinó su **categoría**; 2. el **Plan de Participación Ciudadana** presentado; 3. la convocatoria, el acta y el informe del **foro público**, si lo hubo; 4. la **Resolución Ambiental** y el **Plan de Manejo Ambiental** aprobados, con sus condiciones; 5. los informes de seguimiento, control y fiscalización posteriores; 6. la concesión o contrato sectorial correspondiente y su fecha.

Solicitamos respuesta dentro del plazo legal.

[Nombre, cédula, dirección, fecha]

8F. Demand for prior consultation (Indigenous territory)

Asunto: Exigencia de consulta y consentimiento previo, libre e informado — proyecto [nombre]

Señor Presidente de la República / Ministro de [ramo] / Ministro de Ambiente:

El Congreso General de [comarca] y las autoridades tradicionales de [comunidades] manifestamos que el proyecto [nombre] constituye una medida administrativa que afecta directamente nuestras tierras, territorios, recursos, modos de vida y cultura.

Conforme a la Ley 37 de 2016, la consulta y el consentimiento previo, libre e informado constituyen un derecho **indispensable y obligatorio**, que debe realizarse **de manera previa** a la medida, mediante **diálogo intercultural en lengua materna y español**, y cuya finalidad es alcanzar **acuerdos de consentimiento**. Dicha obligación vincula a **todos los organismos y dependencias del Estado**.

A la fecha **no se ha realizado tal proceso**. Exigimos que se suspenda toda actuación administrativa relativa al proyecto hasta que la consulta se realice conforme a la ley, a través de nuestras autoridades reconocidas.

[Autoridades, comarca, fecha]

8G. Press release (effective)

COMUNICADO — [fecha]

Comunidades de [distrito] solicitan foro público y presentan observaciones al proyecto [nombre]

Residentes de [comunidades], junto con [organizaciones], solicitaron a MiAmbiente la celebración de un **foro público** sobre el Estudio de Impacto Ambiental del proyecto [nombre], y presentaron [número] observaciones.

«[Cita breve de un residente]», señaló [nombre]. El estudio admite [impacto citado, pág.]. **El [río] afectado abastece a [número] familias. [Las comunidades sostienen que el proyecto corresponde a Categoría III, con foro obligatorio.] [El proyecto afecta territorio de la comarca de , lo que activa la consulta previa conforme a la Ley 37 de 2016.]**

Contacto: [nombre, teléfono]. Documentos, fotografías y entrevistas disponibles.

8H. Instruction to counsel

Asunto: Acciones legales — proyecto [nombre]

Estimado(a) licenciado(a),

La Resolución Ambiental [número] de [fecha] aprobó el proyecto [nombre]. Solicitamos su concepto y, de proceder, la presentación de: 1. **demanda contencioso-administrativa de nulidad** ante la Sala Tercera, por: categorización incorrecta; [ausencia de foro público obligatorio / foro celebrado fuera del distrito sin justificación]; falta de respuesta a las observaciones presentadas el [fecha]; deficiencias del Plan de Participación Ciudadana; 2. [donde proceda] **acción de inconstitucionalidad** ante el Pleno, si el proyecto se sustenta en una ley o contrato aprobado por ley; 3. [donde proceda] acciones derivadas de la **falta de consulta previa** conforme a la Ley 37 de 2016.

Podemos aportar: el EsIA y el acto de categorización; nuestras observaciones selladas; la constancia sobre el foro; el informe técnico de [experto]; y la documentación territorial.

Rogamos indicarnos los **plazos** y la conveniencia de solicitar suspensión, pues las obras están previstas para [fecha].

[Fecha, firma]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual resolution and page references, and have counsel review anything heading to court. **Keep stamped copies of everything**. Note the two timings that decide most cases: the **forum must occur before the decision phase**, so requests and preparation belong to the evaluation period; and once the **Resolución Ambiental** issues, the period for an annulment action is short. Remember also that the **evaluation regulation was replaced in 2026**, so confirm current procedure before relying on any step.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can sustain a long campaign. In Panama a small number of precise acts, taken while the study is still under evaluation, carry disproportionate weight. In rough order of impact for the effort:

1. **Find out the category.** Whether the study is **Category I, II or III** decides whether the public gets a **foro público** at all. One phone call or written request to MiAmbiente establishes it, and everything else follows.
2. **Request the forum in writing** (Section 8B). For a **Category II** study, the community and organised civil society may **ask** for a public forum — a right that is rarely exercised and costs nothing. If the study is Category III, confirm in writing that the forum will be held **in your district**, not in the capital.
3. **Contest the category if it is too low** (Section 8C). A project with significant qualitative and quantitative impacts belongs in **Category III**.
4. **Where a comarca, adjacent area or collective land is affected, raise prior consultation at once** (Section 8F) — through the recognised authorities. The 2016 law calls it an indispensable and obligatory right exercised **before** the measure.
5. **Submit written observations and keep the stamped copy.** Name the river, the households, the page of the study. Unanswered observations become a ground later.
6. **Document the forum** — where it was held, who spoke, what was answered (Section 8D).
7. **File one access-to-information request** (Section 8E) for the study, the categorisation, the participation plan and the resolution.

If you do only the first three, you have established whether the public has any guaranteed hearing, exercised the right to demand one, and challenged the classification that would have silenced you. That is a real contribution, not a token one.

WHEN THE SYSTEM IS TILTED

Panama's tilt is not an absence of rights — the rights here are comparatively strong — but the enormous economic weight of the projects and the administrative discretion that decides how much scrutiny they receive.

What This Tilt DOES (and DOESN'T DO)

The tilt means categorisation is an administrative act that can keep a project out of public view; forums can be run as formalities or held far from the affected district; studies are commissioned by promoters; area-of-influence definitions often exclude downstream communities; and projects can carry such economic weight that the political system resists any challenge. It does **not** close the doors: **Category III forums are obligatory**; a **Category II forum can be requested by the community**; the forum must be held **principally in the affected community or district**; the **participation plan** must record real actors and contributions; **prior consultation** is an indispensable, obligatory, pre-decision right for Indigenous peoples binding on all State organs; the **Sala Tercera** annuls administrative acts; and any citizen may bring an **acción de inconstitucionalidad**, which has annulled a mining agreement **twice**.

Reading Your Tilt: Responsive, Mixed, Entrenched

- **Category III, local forum, organised community, water or territory at stake.** The strongest position: you have a guaranteed public hearing, a record to build, and clear legal grounds behind it.
- **Mixed.** A Category II study, or a forum scheduled far away. Weight shifts to the forum request, the category challenge, documenting the process, and preparing annulment.
- **Entrenched.** A project of national economic weight resting on a law or a major concession. Assume the administrative route will not stop it; concentrate on the **constitutional action**, on Indigenous consultation where available, and on building the broad public coalition that in Panama has proved able to change political reality — while planning carefully for safety.

Documented Panamanian Dynamics

The record shows both the power and the price. **Citizens have twice undone a mining agreement through the Constitution** — the Supreme Court declared the original agreement unconstitutional in **2017**, and on **28 November 2023** the **full Court, by unanimity of its nine magistrates**, declared **the entire law** containing the forty-year

contract unconstitutional, in response to two challenges; the President stated he would comply and operations were ordered to cease. **Mobilisation created the conditions** — the **largest peaceful protests in decades**, led by young people, with road blockades by **Indigenous groups and unions** and a teachers' strike leaving some **800,000 students** without classes. **The costs were severe** — **four people died**, more than **1,300 were detained**, and the **Defensoría del Pueblo** called the police response excessive; protests were also disrupted by infiltrators. **The consequences continued after victory** — the company announced **international arbitration claims** under a free trade agreement, and closing a mine takes years. The lesson: **Panama's levers are real and have worked, but the strongest are collective, public and slow, and should be used with a clear-eyed view of their cost.**

Assessment Framework — Determine Your Situation

Ask: what category is the study, and can we contest it? Can we request a forum, and will it be held locally? Does the project affect a comarca, adjacent area or collective land? Does it rest on a concession or on a **law**? Who downstream is excluded from the area of influence? Can we reach counsel, a university and a national organisation this month? Are public actions being planned, and do we have legal support arranged? The answers tell you whether this is an administrative fight, a consultation fight, or a constitutional one — and how to keep people safe.

Direct Action: Factual Information (Descriptive, Not Prescriptive)

Panama has a strong tradition of peaceful assembly, and in 2023 that tradition changed national policy. But the same episode carries the cautions. **Road blockades**, in particular, produced confrontation, deaths and mass detention, and drew an official finding that the police response was excessive; protests were also **disrupted by infiltrators**, which was used to discredit them. If public action is planned: keep it peaceful and well stewarded; arrange legal observers and support for anyone detained **before** the day; agree how to respond to infiltration; avoid actions that endanger participants or emergency access; and take legal advice. This guide notes such tactics exist and have mattered here; it does not advise breaking the law, and the safety of participants is the campaign's first responsibility.

Honest Assessment

Tilted fights are harder, and Panama's are high-stakes because the projects are large and nationally significant. But "harder" is not "hopeless": this is the country where citizens, twice, had a mining agreement struck down by the Supreme Court, and where an entire law was annulled unanimously weeks after it passed. Concentrate force where the tilt is weakest — **the category, the forum, consultation, and the Constitution** — build the broadest coalition you can, and prepare for a fight that is public, legal, and long.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions you disagree with. But capture is real, and in Panama it tends to operate through discretion and through the form the instrument takes. Read your situation actor by actor, and publish documents rather than accusations.

The categorisation decision. The most consequential discretionary act in the system, because it decides whether the public is heard. Signs: a large project with obvious significant impacts classified below Category III; criteria applied without explanation. Lever: the written challenge, and the annulment action later.

The area of influence. Defining it narrowly removes downstream communities from the participation plan and from the forum. Signs: your community absent from a plan that names "key actors". Lever: your own evidence of who uses the water, filed on the record.

The forum's conduct. A forum held far from the affected district, announced late, with speaking time rationed and questions unanswered, is technically a forum and practically an exclusion. Lever: the written constancia recording exactly how it ran.

The instrument. Whether a project proceeds under an administrative concession or under a **law approved by the Assembly** determines which court can hear a challenge — and, as 2023 showed, a contract elevated into a law becomes vulnerable to any citizen's constitutional action. Watch how the instrument is chosen.

Consultation avoided. Where Indigenous territory is affected, replacing the statutory process with an information

meeting after the decision is the characteristic failure. Lever: the comarca's own authorities and the 2016 law's explicit wording.

How to act on it, safely. Document from the Gaceta, the registry and MiAmbiente's published resolutions before you speak. Route genuine concerns to the **Defensoría del Pueblo**, the **Contraloría** for public funds, and the competent authorities — and above all into your **observations, your constancias and your court papers**, where they are protected and consequential. Do not publish unproven accusations against named individuals: it exposes the campaign and distracts from the procedural record, which in Panama is what the courts have repeatedly acted on.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other. In Panama the timeline is organised around one fixed point — **the foro público must happen before the decision phase** — and one long tail, the litigation that follows an approval.

Realistic 12-Month Campaign Timeline

Weeks 1-4 (Foundation). - Establish the study's **category** and whether a forum is obligatory; identify the **MiAmbiente** office, the **municipio and corregimiento**, and whether a **comarca, adjacent area or collective land** is affected. - Obtain the **EsIA** and the **Plan de Participación Ciudadana**; file an access-to-information request for anything missing (Section 8E). - Begin the dated record of **river, forest, farms and homes**, including **downstream** users. - Contact an environmental organisation, a university contact, and counsel.

Weeks 4-10 (The forum window). - File the **written request for a foro público** if the study is Category II, and the **challenge to the category** if it is too low (Sections 8B, 8C). - Where Indigenous territory is affected, the **congreso general** raises **prior consultation** formally (Section 8F). - Prepare **five-minute spoken interventions** and written observations; obtain the technical review. - Attend the forum in numbers, speak, file observations, and **document exactly how it was run** (Section 8D). - Launch media timed to the forum (Step 5).

Months 3-6 (Evaluation and pressure). - Broaden the coalition — downstream communities, municipio, comarca authorities, professional associations, universities, unions, students. - Press MiAmbiente for express answers to the observations and for verifiable conditions. - Assemble the legal file, and establish whether the project rests on a **concession or a law**, which determines the court.

Months 6-12 (Decision and litigation). - On the **Resolución Ambiental**, instruct counsel immediately: **annulment** before the Sala Tercera on the category, the forum, the participation plan, and unanswered observations (Section 8H). - Where the instrument is a **law or contract approved by law**, prepare the **acción de inconstitucionalidad**. - Where consultation was skipped, pursue it through the comarca and the courts. - Sustain media and coalition activity; if public actions are planned, arrange legal support in advance.

Beyond 12 months. - Litigation runs long; keep the file, the coalition and the record intact. - If the project proceeds, obtain the **conditions and the management plan** and monitor them — MiAmbiente supervises compliance, and breach reopens the file. - Watch for **modifications, expansions and renewals**, each of which can require fresh assessment and a fresh forum.

Warning Signs — Act Early

A study appearing on MiAmbiente's system; a category assigned quietly; a forum announced for a distant city or at short notice; survey teams, drilling or access roads; a concession published in the Gaceta; a bill appearing in the Assembly that would approve a contract. That last one matters especially: **when a project is elevated into a law, the constitutional route opens** — which is exactly what happened in 2023.

Key Principles (What Separates Winning Campaigns from Losing Ones)

Winning campaigns: establish the category first and contest it; request the forum where entitled; insist it be held locally; include downstream communities in the record; raise **prior consultation** through the comarca's own authorities; prepare spoken interventions as well as written ones; document how the forum was conducted; keep stamped copies; identify the instrument early; and build a coalition far wider than the affected village. Losing campaigns: accept the category; miss the forum window; treat an information meeting as consultation; discover the annulment deadline late; and escalate to blockades without legal support in place.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Panama takes several forms, and it is worth naming them so you recognise a win when you get one: - a **category raised to III**, making a public forum obligatory; - a **forum convened at the community's request** on a Category II study, or **relocated** to the affected district; - observations **answered** and verifiable **conditions** written into the Resolución Ambiental; - an environmental resolution **refused or annulled** by the Sala Tercera; - **prior consultation ordered** where a comarca, adjacent area or collective land was bypassed; - a **law or contract-law annulled** by the Pleno of the Supreme Court — the outcome achieved in **2023**, and before that in **2017**; - a project **suspended, redesigned or abandoned**; - and a community that has learned the system and holds the record for next time.

Panamanian communities have achieved every one of these, including the largest of them.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone. While the study is under evaluation your leverage is at its height — the category and the forum are both live, and both are cheap to contest. Once the resolution issues, the question is the deadline, so get advice within days. Where Indigenous territory is affected, the consultation right is a separate and often stronger track that does not depend on the environmental process at all. And where the project has been elevated into a **law**, remember that any citizen may challenge it before the full Supreme Court — a route with no equivalent short window, and one this country has used successfully twice. If continuing would require actions that put people at serious risk, slow down: the 2023 victory was real, and so were its four deaths.

The Bottom Line

Panama's system leans toward large investment, decides categories administratively, and can run public forums as formalities. But it also gives communities a ladder that few countries match. Projects on the regulatory list need an **estudio de impacto ambiental** and a **Resolución Ambiental** from **MiAmbiente**, which then supervises the management plan. For **Category III** a **foro público is obligatory**, held **before the decision** and **principally in the community or district where the project is located** — and for **Category II** the community and organised civil society may **request** one. Every study must carry a **Plan de Participación Ciudadana** naming the key actors in the area of influence and recording the community's contributions. Where Indigenous peoples of the **comarcas, adjacent areas or collective lands** are affected, the **2016 law** makes **prior, free and informed consultation** an indispensable and obligatory right, exercised **before** the measure, through intercultural dialogue in the mother tongue and Spanish, and aimed at **agreements of consent**, binding on all State organs. And behind all of it stands the **acción de inconstitucionalidad**, available to any citizen — the instrument by which the Supreme Court struck down the original mining agreement in 2017 and, unanimously, the entire mining law in November 2023, after the largest peaceful protests in decades. Communities that establish the category, contest it where it is wrong, demand and fill the forum, include the downstream users the promoter left out, raise consultation through their own authorities, document precisely how the process was run, and keep counsel ready have forced forums, won conditions, obtained annulments — and, twice, undone a mine. No single step wins; the combination does. Start today by asking one question: **what category is this study, and when is the forum?**